

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SAVELOV AND OTHERS v. RUSSIA

(Applications nos. 62815/10 and 5 others –
see appended list)

JUDGMENT

STRASBOURG

1 December 2022

This judgment is final but it may be subject to editorial revision.



In the case of Savelov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 10 November 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them on account of their arrest and conviction for an administrative offence following their participation in public demonstrations. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them on account of their arrest followed by their conviction for administrative offence in view of their participation in public demonstrations. They relied, expressly or in substance, on Article 11 of the Convention, which reads as follows:

Article 11

"1. Everyone has the right to freedom of peaceful assembly ...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others ..."

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia*, no. 74568/12, 5 January 2016, *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interference with the applicants' freedom of assembly was not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. In applications nos. 8778/12 and 72625/12, the applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Navalnyy and Yashin* (cited above, §§ 82-85 and §§ 91-98); *Karelin v. Russia* (no. 926/08, §§ 60-84, 20 September 2016); and *Lashmankin and Others v. Russia* (nos. 57818/09 and 14 others, §§ 486-92, 7 February 2017).

12. Finally, in application no. 39123/12 the applicant also complained under Article 14 of the Convention taken in conjunction with Article 11 that he had been discriminated against on account of his sexual orientation. Having regard to its findings above, the Court finds these complaints

admissible but does not consider it necessary to continue a separate examination of their merits (see *Moscow Branch of the Salvation Army v. Russia*, no. 72881/01, § 100, ECHR 2006-XI).

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, most recently, *Fedotova v. Russia* [Committee], no. 2064/10, § 16, 1 March 2022), the Court finds it reasonable to award the sums indicated in the appended table.

15. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table) by the applicants in applications nos. 8778/12 and 72625/12;

5. *Holds* that there is no need to examine the merits of the complaint raised in application no. 39123/12 under Article 14 of the Convention in conjunction with Article 11;

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 1 December 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	62815/10 14/10/2010	**Igor Gennadyevich SAVELOV** 1989	Gorlov Stanislav Vladimirovich Moscow	Picket against the demolition of residential buildings Moscow, Tverskaya square 09/02/2010	Article 20.2 § 2 of CAO	fine of RUB 500	Tverskoy District Court of Moscow 15/04/2010		3,000
2.	8778/12 29/12/2011	**Petr Yuryevich VERZILOV** 1987	Sharapov Ilnur Ilgizovich Moscow	Manifestation for fair elections to State Duma Moscow, Teatralnyy Proyezd 05/12/2011	Article 19.3 § 1 of CAO	administrative detention of 10 days	Tverskoy District Court of Moscow 09/12/2011	Art. 6 (1) - and Art. 6 (3) (d) - unfair trial in view of restrictions on the right to examine witnesses - inability to examine the defence witnesses (who were present during the applicant's arrest), the only evidence are police written statements and escorting records, Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 05/12/2011 for the sole purpose of drawing a record of administrative offence; the record could have been drawn up on the spot; detention for more than 3 hours	3,900

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3.	31808/12 23/04/2012	**Ruslan Abdulganiyevich RASULOV** 1963		Anti-corruption rally Makhachkala 03/10/2011	Article 20.2 § 2 of CAO, Article 19.3 § 1 of CAO	administrative detention of 2 days	Supreme Court of the Dagestan Republic 08/02/2012		3,000
4.	39123/12 08/06/2012	**Matvey Andreyevich PETUKHOV** 1990	Memorial Human Rights Centre Moscow	Demonstration against the "propaganda of homosexuality" law Moscow, Chistoprudnyy Boulevard 01/10/2011	Article 20.2 § 2 of CAO	fine of RUB 500	Basmannyy District Court of Moscow 12/12/2011		3,000
5.	63544/12 29/09/2012	**Mikhail Leontyevich UDIMOV** 1955	Shukhardin Valeriy Vladimirovich Moscow	Political manifestation Moscow, Voskresenskiye Gates 01/04/2012	Article 20.2 § 2 of CAO	fine of RUB 500	Tverskoy District Court of Moscow 03/07/2012		3,000
6.	72625/12 23/10/2012	**Kirill Nikolayevich YERMOLAYEV** 1990	Tseytlina Olga Pavlovna St Petersburg	Protest against Duma Elections' Results Gostinyy Dvor St Petersburg 07/12/2011	Article 19.3 § 1 of CAO	administrative detention of 10 days	Krasnoselskiy District Court of St Petersburg 31/05/2012	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative proceedings	3,900

[1] Plus any tax that may be chargeable to the applicants.